

25STCV19601 25STCV19601

County: los-angeles

Division: Civil Law and Motion

Department: 735

Hearing date: 2026-08-14

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Case Number: 25STCV19601 Hearing Date: August 14, 2026 Dept: 735

Alexander Yevelev v. FCA US LLC, et al.

Demurrer with Motion to Strike

On

June 30, 2025, Plaintiff filed his complaint against Defendants FCA US LLC, Stewart Chrysler Dodge Jeep and Ram dba Stewart Dealerships. Defendant demurs to Plaintiff's sixth cause of action for fraudulent inducement-concealment on grounds that Plaintiff fails to allege facts establishing any duty to disclose and to provide the specificity and particularity necessary to sustain a fraud claim. The elements of fraudulent concealment are: (1) the defendant concealed or suppressed a material fact; (2) the defendant was under a duty to disclose the fact to the plaintiff; (3) the defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff was unaware of the fact and would not have acted in the same way had the plaintiff known of the concealed fact; (5) causation; and (6) the plaintiff sustained damages.¿

Defendant

argues that under California law, a duty to disclose based on exclusive knowledge arises only when the defendant has actual knowledge of a material fact that the plaintiff could not reasonably discover and which is vital to the transaction. But Defendant overstates the fraudulent concealment requirements by arguing that Plaintiff must allege facts regarding misrepresentations. Less particularity is required where the defendant is presumed to have knowledge of the facts equal to or greater than Plaintiff's knowledge.

Plaintiff alleges that defendants had knowledge of the defect before Plaintiff purchased the subject vehicle in 2020, knew that the defect had not been remedied when it sold Plaintiff the vehicle, and failed to disclose the defect. (Complaint, ¶¶ 20, 25, 67, 68, 71.) Plaintiff would not have purchased the vehicle if Defendant disclosed the defect. (Complaint, ¶ 69.) Plaintiff suffered harm because of Defendant's concealment. (Complaint, ¶ 71.)

Defendant also argues Plaintiff fails to allege with particularity the defect GM allegedly concealed. In *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 844, the Court found that Plaintiff's allegation that the "CVT transmissions were defective in that they caused such problems as hesitation, shaking, jerking, and failure to function" to be sufficient. (Id.) Here, Plaintiff alleges that FAC committed fraud by allowing the Subject vehicle to be sold to Plaintiff without disclosing that, "the Subject Vehicle equipped with the 3.6L engine was defective, and which may result in loss of power, stalling, engine running rough, engine misfires, failure or replacement of the engine." (Complaint ¶¶ 16, 65.) In any event, Plaintiff pleads the subject vehicle contained an "Engine Defect." The Court finds Plaintiff's allegations to be sufficient to state a cause of action for fraudulent misrepresentation.

Motion to Strike

Defendant moves to strike from the complaint all references to punitive and/or exemplary damages, including but not limited to: Page 12, line 7 – "For punitive damages." The Court declines to strike Plaintiff's cause of action for fraud. Therefore, Plaintiff is entitled to allege punitive damages. The motion to strike is denied.

CONCLUSION

The court overrules Defendant's demurrer. The motion to strike is denied.

Defendant shall file and serve its answer within 10 days.

Defendant
shall give notice.